ORDINANCE NO. 1619

AN ORDINANCE OF THE CITY OF BANNING, CALIFORNIA, APPROVING AN AMENDMENT TO THE CITY OF BANNING OFFICIAL ZONING MAP AND APPROVING ZONE CHANGE 22-3502 REZONING CERTAIN TERRITORY IN THE CITY LOCATED SOUTH OF WEST WESTWARD AVENUE AND EAST OF SUNSET AVENUE (APNS 537-140-001- THROUGH -004, -006 THROUGH -012, 537-150-001, -003 AND -004, -008).

WHEREAS, the City of Banning, California, ("City") is a general law city and a municipal corporation of the State of California; and

WHEREAS, an application for Zone Change (Case No. ZC 22-3502), (the "Project"), a proposal to amend the Zoning District classification from Public Facilities – School (PF-S) to Very High Density Residential (VHDR), for 41 acres of a 49.2-acre site located near the southeast corner of Westward and Sunset Avenues (APNs: 537-140-001 through -004, 537-140-006 through -012, 537-150-001, 537-150-003 and -004, 537-150-008), has been duly filed; and

WHEREAS, pursuant to Section 17.04.060.C. of the BMC, the Planning Commission has the authority to review and make recommendations to the City Council concerning Case No. ZC 22-3502; and

WHEREAS, pursuant to Section 17.116.040 of the Banning Municipal Code, the City Council has the authority to interpret the Zoning Ordinance; and

WHEREAS, pursuant to the California Environmental Quality Act (CEQA) and State CEQA Guidelines Sections 15064(f)(2) and 15070, the proposal constitutes a project as defined by CEQA and Community Development Department staff has determined that the Project is likely to have a significant effect on the environment; and

WHEREAS, based upon the complexity and magnitude of the proposed project, staff determined that an Environmental Impact Report should be prepared for the project, and an Initial Study was not necessary. A Notice of Preparation (NOP) was therefore completed and distributed to the State Clearinghouse, as well as agencies and organizations that may provide comment on the Project's potential impact(s) on the environment. The State of California Clearinghouse issued a project number for the project, SCH No. 2021020011. The 30-day public comment period extended from February 1 to March 3, 2021. An electronic copy of the NOP was made available on the City's website. Comments received during the public review of the NOP were utilized to assist in identifying potential environmental impacts; and

WHEREAS, due to COVID-19 restrictions, the Public Scoping meeting was held virtually on February 18, 2021 via Zoom. Notice of the Public Scoping Meeting was published in the Banning Record Gazette on February 5, 2021 providing the appropriate

instructions for public participation in the Scoping Meeting. The Public Scoping Meeting included a presentation providing a summary of the Project, required actions, and the environmental review process. No public comments were received during the Scoping Meeting; and

WHEREAS, the Sunset Crossroads development project includes a General Plan Amendment and implementation of a Specific Plan for the Project; therefore, Native American consultation pursuant to both SB 18 and Assembly Bill 52 (AB 52) was conducted. On November 30, 2020 the City reached out to 31 Native American contacts to formally invite participation in tribal consultation pursuant to AB 52 and SB 18 required for the Project. The City received responses from the Morongo Band of Mission Indians (MBMI), the Soboba Band of Luiseño Indians (SBLI), and the Agua Caliente Band of Cahuilla Indians (ACBCI) requesting formal consultation with the City regarding the Development Project; and

WHEREAS, the City provided a separate consultation invitation to these same 31 Native American contacts on August 25, 2022, specifically identifying the entitlement actions related to the MSJC Site. In this 2022 consultation, the City stated the MSJC site entitlements proposed only changes to the City's land use and zoning maps, and that no construction or physical alterations were proposed or would be authorized under the MSJC entitlements. The MBMI acknowledged the City's actions and noted the MSJC Site is located within the ancestral territory and traditional use area of the Cahuilla and Serrano people of the MBMI and that any future construction or alterations to the MSJC Site would be of interest to the MBMI. The San Manuel Band of Mission Indians (SMBMI) stated the MSJC Site is outside of Serrano ancestral territory and, as such, SMBMI would not request consulting party status with the City; and

WHEREAS, a Notice of Availability (NOA) of the Draft EIR was provided to, responsible and trustee agencies, as well as the organizations, and persons who have previously requested notification. The NOA was distributed via priority mail with confirmed receipt. The NOA identified the State mandated 45-day public review period extending from December 15, 2023 to January 30, 2024 and included a weblink to the City's public noticing page providing further access to the Draft EIR, project material, and related technical appendices. Emails advising of the availability of the Draft EIR were sent by the City on December 15, 2023 to those parties requesting electronic notification. These emails provided the same weblink leading to the Draft EIR; and

WHEREAS, during the public review and comment period, the City received 54 letters from Resource Agencies, Trustee Agencies, and other interested parties. The City prepared a response to each comment letter received and prepared a Final Environmental Impact Report for the Project; and

WHEREAS, in accordance with the disclosure requirements of CEQA Guidelines Section 15072(g)(5), the Project site is not listed as a hazardous property as designated under Section 65962.5 of the Government Code; and

WHEREAS, in accordance with Government Code Sections 65353, 65854, 65090, and 65091, on August 15, 2025 the City provided public notice by advertisement in the Record Gazette newspaper of a public hearing concerning the Project, and Notice of Intent (NOI) to recommend that the City Council adopt a Final Environmental Impact Report (FEIR) for the Project. The public hearing notice/NOI was also mailed to the owners of the subject properties within 300-feet of the Project boundary; and

WHEREAS, in accordance with Government Code Sections 65353 and 65855, on September 10, 2025 the Planning Commission held the duly noticed public hearing at which interested persons had an opportunity to testify in support of, or opposition to the Project and at which time the Planning Commission considered the entirety of the Project and is recommending that the City Council approve the Project.

WHEREAS, in accordance with Government Code Sections 65353, 65854, 65090, and 65091, on October 10, 2025 the City provided notice by advertisement in the Record Gazette newspaper of a public hearing before the Planning Commission to consider the Project, and related environmental documentation. The notice was also mailed to the owners of properties within 300-feet of the Project boundary; and

WHEREAS, in accordance with Government Code Sections 65353 and 65855, on November 5, 2025 the Planning Commission held the duly noticed public hearing at which interested persons had an opportunity to testify in support of, or opposition to the Project and at which time the Planning Commission considered the entirety of the Project; and

WHEREAS, at the November 5, 2025, regular meeting, the Planning Commission voted 5-0 instructing staff to prepare a resolution making findings supporting a denial recommendation to the City Council of GPA 22-2502 and ZC 22-3502; and

WHEREAS, at the November 17, 2025, special meeting, the Planning Commission voted 3-2 adopting Resolution No. 2025-16 recommending the City Council deny General Plan Amendment 22-2502 and Zone Change 22-3502 with findings that are included in this Resolution; and

WHEREAS, a public notice for the January 28, 2026, City Council special meeting was published in accordance with State law and the Banning Municipal Code, and written notice was mailed to property owners within 300 feet of the project site; and

WHEREAS, at the January 28, 2026 special meeting, the City Council of the City of Banning (the "City Council") held a public hearing, commenced deliberation and voted five in favor and none opposed to continue deliberation of the matter at a special meeting on February 26, 2026; and

WHEREAS, at the February 26, 2026, special meeting, the City Council voted unanimously 5-0 to continue the item to a regular meeting date of March 10, 2026; and

WHEREAS, at the March 10, 2026, regular meeting, the item was not heard by the

City Council in the time allotted for the meeting, and therefore, the item was continued to the regular meeting date of March 24, 2026; and

WHEREAS, the City Council has reviewed the staff report, Planning Commission recommendation, environmental documentation, proposed general plan amendment and zone change, supporting materials, and public testimony and finds the project in conformance with the requirements of the Banning Municipal Code, the City's General Plan, and the Zoning Ordinance.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF BANNING DOES ORDAIN AS FOLLOWS:

SECTION 1. RECITALS
That the above Recitals are true and correct and are incorporated as though fully set forth herein.

SECTION 2. OFFICIAL ZONING MAP AMENDMENTS.
The City Council hereby approves ZC 22-2502, zoning land lying within the jurisdiction of the City and directs the Community Development Director to amend the City of Banning Official Zoning Map, as depicted in Exhibit A to this Ordinance and incorporated by this reference, to amend the zoning classifications of the Real Property legally described on Exhibit B-1 and Exhibit B-2 to this Ordinance, each incorporated by this reference, from Public Facilities – School (PF-S) to Very High Density Residential (VHDR), for the portion of the Property legally described on Exhibit B-1, comprising APNS 537-110-003 through -005, 537-110-011 through -014 is within the jurisdiction of the City.

SECTION 3. FINDINGS FOR APPROVAL OF ZC 22-2502.
BMC Section 17.116.040 provides that upon receipt of the Planning Commission's recommendation, the City Council may approve, approve with modifications, or disapprove the proposed amendment based upon its findings. Amendments to the Zoning Ordinance shall be adopted by ordinance. Further, BMC Section 17.116.050 provides that an amendment to the Zoning Ordinance may be adopted only if the following findings are made. The City Council hereby finds and determines as follows:

A. FINDING No. 1: The proposed Amendment is consistent with the goals and policies of the General Plan.

   Findings of Fact: The Zone Change would implement the related General Plan amendment and is therefore consistent with the policies of the General Plan for the reasons discussed above.

B. FINDING No. 2: The proposed Amendment is internally consistent with the Zoning Ordinance.

   Findings of Fact: The proposed Zone Change will transfer residential density from one project site to the subject site to accommodate a commercial/industrial development project. The proposed amendment will provide consistency with state housing law in that it ensures no net loss in the residential development capacity

identified in the City's General Plan, and the proposed density range is from 24 to 30 dwelling units per acre, consistent with the Zoning Ordinance and development standards for the Very High Density Residential zone.

C. FINDING No. 3: That the City Council has independently reviewed and considered the requirements of the California Environmental Quality Act.

Findings of Fact: A Programmatic Analysis for the MSJC entitlements is contained in Chapter 5 of the Sunset Crossroads Specific Plan FEIR, in accordance with the California Environmental Quality Act (CEQA). The City Council has conducted an independent review, and the City Council approves the project and programmatic EIR that has been prepared for the Project.

SECTION 5. SEVERABILITY.
If any section, subsection, sentence, clause, or phrase of this Ordinance is for any reason held to be invalid or unconstitutional by a decision of any court of any competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Ordinance. The City Council hereby declares that it would have passed this Ordinance, and each and every section, subsection, sentence, clause, or phrase not declared invalid or unconstitutional without regard to whether any portion of the Ordinance would be subsequently declared invalid or unconstitutional.

SECTION 6. CERTIFICATION.
The City Clerk is directed to certify the passage and adoption of this Ordinance; cause it to be entered into the City of Banning's book of original ordinances; make a note of the passage and adoption in the records of this meeting; and, within fifteen (15) days after the passage and adoption of this Ordinance, cause it to be published or posted in accordance with California law.

SECTION 7. EFFECTIVE DATE.
This Ordinance shall take affect thirty (30) days after its second reading by City Council. The City Clerk is directed to certify to the enactment of this Ordinance and to cause this Ordinance to be published and/or posted as required by law.

INTRODUCED AND READ for the first time and ordered posted at a special meeting of the City Council of the City of Banning, California, held on the 24th day of March 2026, by the following roll call vote:

AYES: Barrington, Miller, Royce, Wallace

NOES: Flynn

ABSENT:

ABSTAIN:

PASSED, APPROVED, AND ADOPTED at a regular meeting of the City Council of the City of Banning, California, held on the 14th day of April 2026, by the following roll call vote:

AYES: Barrington, Miller, Royce, Wallace

NOES: Flynn

ABSENT:

ABSTAIN:

Richard Royce, Mayor
City of Banning

ATTEST:

Sandra Calderon, Deputy City Clerk
City of Banning

APPROVED AS TO FORM:

John Pinkney, City Attorney
Slovak, Baron, Empey, Murphy & Pinkney, LLP

CERTIFICATION:

I, Sandra Calderon, Deputy City Clerk of the City of Banning, California, do hereby certify that Ordinance No. 1619 was duly introduced at a special meeting of the City Council of the City of Banning, held on the 24th day of March, 2026, and was duly adopted at a regular meeting of said City Council on the 14th day of April, 2026, by the following vote, to wit:

AYES: Barrington, Miller, Royce, Wallace

NOES: Flynn

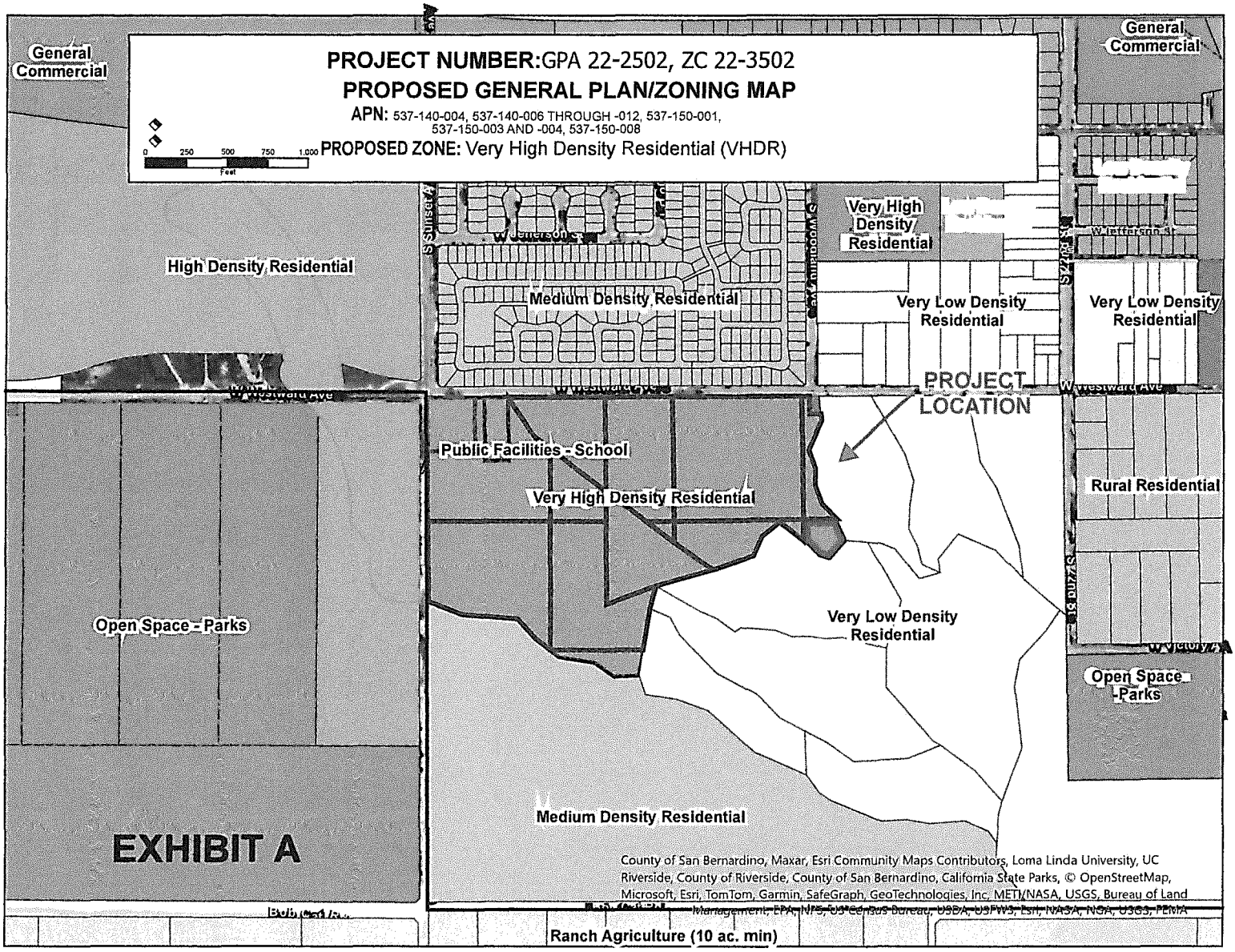
ABSENT: None

ABSTAIN: None

Sandra Calderon

Sandra Calderon, Deputy City Clerk
City of Banning, California

EXHIBIT A
General Plan/Zoning Map


PROJECT NUMBER:GPA 22-2502, ZC 22-3502
PROPOSED GENERAL PLAN/ZONING MAP
APN: 537-140-004, 537-140-006 THROUGH -012, 537-150-001, 537-150-003 AND -004, 537-150-008
PROPOSED ZONE: Very High Density Residential (VHDR)
0 250 500 750 1,000 Feet
General Commercial
General Commercial
High Density Residential
Medium Density Residential
Very High Density Residential
Very Low Density Residential
Very Low Density Residential
PROJECT LOCATION
Public Facilities - School
Very High Density Residential
Rural Residential
Open Space - Parks
Very Low Density Residential
Open Space - Parks
Medium Density Residential
Ranch Agriculture (10 ac. min)
EXHIBIT A
S Sultus St
S Woodruff Ave
W Jefferson St
W Westwind Ave
County of San Bernardino, Maxar, Esri Community Maps Contributors, Loma Linda University, UC Riverside, County of Riverside, County of San Bernardino, California State Parks, © OpenStreetMap, Microsoft, Esri, TomTom, Garmin, SafeGraph, GeoTechnologies, Inc, METI/NASA, USGS, Bureau of Land Management, EPA, NPS, US Census Bureau, USDA, USFWS, Esri, NASA, NGA, USGS, FEMA